

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ALFONSO PEREZ,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER CAROLYN DALEY
(shield # 6005),

Defendants.

Index No.

Purchased 7-1-24

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 30, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
ALFONSO PEREZ

Plaintiff,

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER CAROLYN DALEY (shield # 6005),

Defendants.
-----X

Plaintiff, ALFONSO PEREZ, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ALFONSO PEREZ was a resident of State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant POLICE OFFICER CAROLYN DALEY (shield # 6005)(P.O. DALEY") was and still is an officer employed by Defendants.

BACKGROUND

5. On April 7, 2023, at approximately 10:00 p.m., in the vicinity of Marion Avenue and East 188th Street in Bronx County, without just cause or provocation, Defendants, including P.O. DALEY, approached Plaintiff, grabbed Plaintiff, violently yanked Plaintiff's left arm in an upward direction and then slammed Plaintiff to the ground.

6. The POLICE handcuffed Plaintiff and transported Plaintiff to the 46th Police Precinct. At the precinct, Plaintiff requested medical attention but the POLICE ignored Plaintiff's request.

7. On April 8, 2023, Plaintiff was released from custody with a Criminal Court Summons directing Plaintiff to appear in Criminal Court.

8. On April 27, 2023, the criminal action against Plaintiff commenced. On the same day, the matter was terminated in Plaintiff's favor in that all charges were dismissed and sealed.

PROCEDURAL POSTURE

9. On May 24, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

10. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

11. A 50-H hearing has been held.

12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

13. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.

15. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-7, and Plaintiff did not consent to that arrest or confinement.

16. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

17. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.

19. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

20. Upon information and belief, P.O. DALEY generated police paperwork that contained false and misleading information.

21. The matter was terminated in Plaintiff's favor on April 27, 2023.

22. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: BATTERY

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. When P.O. DALEY and the other POLICE officers involved grabbed Plaintiff, violently yanked Plaintiff's left arm in an upward direction and then slammed Plaintiff to the ground, they subjected Plaintiff to a harmful or offensive bodily contact. The Defendants intended to make that contact without the consent of Plaintiff.

25. As a result of being battered by the Defendants, Plaintiff sustained physical injuries, including a left shoulder tear that required surgery. Plaintiff also sustained emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: ASSAULT

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. The Defendants, including P.O. DALEY, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching Plaintiff, grabbing Plaintiff, violently yanking Plaintiff's left arm in an upward direction and then slamming Plaintiff to the ground.

28. As a result of being assaulted by P.O. DALEY, Plaintiff sustained physical injuries, including a left shoulder tear that required surgery. Plaintiff also sustained emotional injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional

limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
June 30, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

295 Madison Avenue, 12th Floor

New York, NY 10017

(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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Plaintiff

-against-

**THE CITY OF NEW YORK,
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Defendants
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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
June 30, 2024



ELLIOT S. KAY